Per Curiam

MIRABELLI ET AL. *v.* BONTA, ATTORNEY GENERAL OF CALIFORNIA, ET AL.

ON APPLICATION TO VACATE INTERLOCUTORY STAY ORDER

No. 25A810. Decided March 2, 2026

Invoking the Free Exercise Clause and Due Process Clause, parents of California public schoolchildren and teachers in the California public school system brought this challenge to a set of statewide student gender policies. Under these policies, school employees must refer to students by their preferred name and pronouns, and school employees must obtain the child's consent before disclosing the child's gender identity to his or her parents. The District Court permanently enjoined enforcement of these policies. The Ninth Circuit stayed the injunction pending appeal.

Held: As to the parents, the application to vacate the Ninth Circuit's stay is granted because the stay is not justified under the governing four-factor test. See *Alabama Assn. of Realtors* v. *Department of Health and Human Servs.*, 594 U. S. 758 (*per curiam*). The parents are likely to succeed on the merits of their free exercise claim. California's policies likely trigger strict scrutiny because they substantially interfere with the "right of parents to guide the religious development of their children." *Mahmoud* v. *Taylor*, 606 U. S. 522, 559. The policies likely fail strict scrutiny because they cut out the primary protectors of children's best interests: their parents. The parents who object on due process grounds are also likely to succeed on the merits. Under long-established precedent, parents—not the State—have primary authority with respect to "the upbringing and education of children." *Pierce* v. *Society of Sisters*, 268 U. S. 510, 534–535. The denial of plaintiffs' constitutional rights is irreparable harm. See *Roman Catholic Diocese of Brooklyn* v. *Cuomo*, 592 U. S. 14, 19 (*per curiam*). And the equities—the most important of which is child safety—favor the parents.

Application granted in part and denied in part.

Page Proof Pending Publication

PER CURIAM.

Before us is an application to vacate a Court of Appeals order staying a permanent injunction entered by a District Court on behalf of parents and teachers who claim that certain California policies violate their rights under the Free Exercise Clause of the First Amendment and the Due Proc-

ess Clause of the Fourteenth Amendment. The parents object that these policies prevent schools from telling them about their children's efforts to engage in gender transitioning at school unless the children consent to parental notification. The parents also take issue with California's requirement that schools use children's preferred names and pronouns regardless of their parents' wishes. The teachers object to their compelled participation in the implementation of the State's policies.

I

This case began in the United States District Court for the Southern District of California in 2023 when two teachers sued seeking an exemption from their school district's policies regarding students' gender. During litigation, the school district claimed that state law, as interpreted by the California attorney general and Department of Education, required it to adopt these policies. So the teachers added state officials as defendants, and parents of California schoolchildren joined the lawsuit as plaintiffs. Relying on their own experiences and guidance documents issued by state officials, plaintiffs alleged that California's policies permitted disclosure of a student's gender transitioning at school only if the student consented. Plaintiffs claimed that these policies violated their rights under the Free Exercise Clause of the First Amendment and the Due Process Clause of the Fourteenth Amendment.

Page Proof Pending Publication

Two of the parent plaintiffs, John and Jane Poe, have religious objections to gender transitioning but were not told by their daughter's school when she began to present as a boy and use a male name and male pronouns during her seventh-grade year. In parent-teacher meetings, no one told the Poes about their daughter's transitioning or referred to her using the male name and pronouns that were used at school. At the beginning of their daughter's eighth-grade year, she attempted suicide and was hospitalized. Only then did her parents learn from a doctor that she had gender dysphoria

and had been presenting as a boy at school. Just months after being discharged, the Poes' daughter was rehospitalized and held there involuntarily because she was at risk for self-harm. At a new school in ninth grade, she once again began identifying as a boy. Contrary to the Poes' instructions, teachers and school officials continued to use a male name and pronouns for their daughter, citing their obligations under California state law. The Poes have placed their daughter in therapy and obtained psychiatric care for her.

Like the Poes, plaintiffs John and Jane Doe object to gender transitioning, but since fifth grade, their daughter has sometimes identified as a boy. When their daughter was in seventh grade, the Does confronted the school principal about their daughter's transitioning. They believed the school was using a male name and pronouns for their daughter behind their backs. The principal explained that state law prohibited the school from sharing information about a child's transitioning with the child's parents without the child's consent. The Does believed that the risk of leaving their daughter in that school was too great, so they transferred their daughter to a new public school because sending her to a private school was financially and logistically infeasible. The Does have also placed their daughter in therapy.

Page Proof Pending Publication

In 2025, defendants asserted that the guidance documents on which plaintiffs had relied were no longer operative and that the claims against certain state defendants should be dismissed as moot. But the State had promulgated a new required training curriculum that similarly directed teachers not to tell parents about their children's gender identity without the children's consent. Defendants then withdrew their mootness argument, and the District Court declined to impose sanctions.

Later, plaintiffs sought classwide relief, and the District Court certified a class with separate subclasses for parents and teachers. One subclass of parents comprises all those

who object to the challenged policies, while a separate subclass is limited to those who seek a religious exemption. App. to Emergency Application 90a (App.). Two similar subclasses of teachers were also certified. *Id.*, at 89a–90a.

After discovery, the court granted summary judgment for all plaintiffs and entered a permanent injunction in their favor. The injunction prevents the schools from "misleading" parents about their children's gender presentation at school and their social transitioning efforts. *Id.*, at 24a. It also requires the schools to follow parents' directions regarding their children's names and pronouns. And it compels defendants to include in state-created or approved instructional materials a notice of the rights protected by the injunction.

The Ninth Circuit granted defendants' motion to stay the injunction pending appeal. It began by raising procedural objections to the District Court's injunction. It claimed that the District Court had granted class certification without undertaking the "'rigorous analysis'" required by Federal Rule of Civil Procedure 23. App. 7a (quoting *Wal-Mart Stores, Inc.* v. *Dukes*, 564 U. S. 338, 351 (2011)). And it stated that the injunction appeared to be overly broad because it "covers every parent of California's millions of public school students and every public school employee in the state." App. 6a. As a result, it opined, the injunction seemed to grant relief to uninjured class members who lacked Article III standing.

Page Proof Pending Publication

The Ninth Circuit also expressed doubts about the District Court's decision on the merits. On the free exercise issue, it relied on a not-precedential Sixth Circuit decision and brushed aside *Mahmoud* v. *Taylor*, 606 U. S. 522 (2025), as "a narrow decision focused on uniquely coercive 'curricular requirements.'" App. 10a–11a (citing *Doe No. 1* v. *Bethel Local School Dist. Bd. of Educ.*, 2025 WL 2453836, *7 (CA6, Aug. 26, 2025)). The Ninth Circuit expressed skepticism

about the parents' and teachers' Fourteenth Amendment due process claim because it viewed those claims as seeking to expand the protection afforded by established precedent.

When the Ninth Circuit stayed the injunction, the parents and teachers filed this application seeking vacatur of the Ninth Circuit's stay pending appeal.

II

We grant the application and vacate the stay with respect to the parents because this aspect of the stay is not "justified under the governing four-factor test." *Alabama Assn. of Realtors* v. *Department of Health and Human Servs.*, 594 U. S. 758, 763 (2021) (*per curiam*) (citing *Nken* v. *Holder*, 556 U. S. 418, 434 (2009)).

Likelihood of success on the merits. We conclude that the parents who seek religious exemptions are likely to succeed on the merits of their Free Exercise Clause claim. California's policies likely trigger strict scrutiny under that provision because they substantially interfere with the "right of parents to guide the religious development of their children." *Mahmoud*, 606 U. S., at 559 (citing *Wisconsin* v. *Yoder*, 406 U. S. 205 (1972)). The parents who assert a free exercise claim have sincere religious beliefs about sex and gender, and they feel a religious obligation to raise their children in accordance with those beliefs. California's policies violate those beliefs and "impos[e] the kind of burden on religious exercise that *Yoder* found unacceptable." 606 U. S., at 550. Indeed, the intrusion on parents' free exercise rights here—unconsented facilitation of a child's gender transition—is greater than the introduction of LGBTQ storybooks we considered sufficient to trigger strict scrutiny in *Mahmoud*. See *id.*, at 563.

Page Proof Pending Publication

California's policies will likely not survive the strict scrutiny that *Mahmoud* demands. The State argues that its policies advance a compelling interest in student safety and privacy. But those policies cut out the primary protectors

of children's best interests: their parents. See *Troxel* v. *Granville*, 530 U. S. 57, 68–69 (2000) (plurality opinion). California's policies also appear to fail the narrow-tailoring requirement. The State's interest in safety could be served by a policy that allows religious exemptions while precluding gender-identity disclosure to parents who would engage in abuse. For these reasons, the parents who object to the California policies on free exercise grounds are likely to succeed on the merits.

The same is true for the subclass of parents who object to those policies on due process grounds. Under long-established precedent, parents—not the State—have primary authority with respect to "the upbringing and education of children." *Pierce* v. *Society of Sisters*, 268 U. S. 510, 534–535 (1925); accord, *Meyer* v. *Nebraska*, 262 U. S. 390, 399–400 (1923). The right protected by these precedents includes the right not to be shut out of participation in decisions regarding their children's mental health. *Parham* v. *J. R.*, 442 U. S. 584, 602 (1979). Gender dysphoria is a condition that has an important bearing on a child's mental health, but when a child exhibits symptoms of gender dysphoria at school, California's policies conceal that information from parents and facilitate a degree of gender transitioning during school hours. These policies likely violate parents' rights to direct the upbringing and education of their children.

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Irreparable harm. The denial of plaintiffs' constitutional rights during the potentially protracted appellate process constitutes irreparable harm. *Roman Catholic Diocese of Brooklyn* v. *Cuomo*, 592 U. S. 14, 19 (2020) (*per curiam*).

Balance of equities. Finally, the "equities do not justify depriving [the parents] of the District Court's judgment in their favor." *Alabama Assn. of Realtors*, 594 U. S., at 765. Everyone agrees that children's safety is the overriding equity. And the injunction here promotes child safety by guaranteeing fit parents a role in some of the most consequential decisions in their children's lives. The injunction

also permits the State to shield children from unfit parents by enforcing child-abuse laws and removing children from parental custody in appropriate cases.

III

The Ninth Circuit's procedural objections to the injunction are unlikely to prevail.

First, the parents protected by the injunction very likely have standing because they are objects of the challenged exclusion policies. See *Diamond Alternative Energy, LLC* v. *EPA*, 606 U. S. 100, 114 (2025). Contrary to the Ninth Circuit's suggestion, the injunction does not provide relief for all the parents of California public school students, but only for those parents who object to the challenged policies or seek religious exemptions.

Second, class certification was likely proper. The District Court addressed the requirements for certification under Rule 23 and explained why it concluded that they were met.

Page Proof Pending Publication

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The application to vacate the Ninth Circuit's stay presented to JUSTICE KAGAN and by her referred to the Court is granted as to the parents but is otherwise denied.

JUSTICE THOMAS and JUSTICE ALITO would grant the application in full.

JUSTICE SOTOMAYOR would deny the application in full.

JUSTICE BARRETT, with whom THE CHIEF JUSTICE and JUSTICE KAVANAUGH join, concurring.

As the dissent observes, substantive due process is a controversial doctrine. Judges typically interpret express constitutional rights, such as the freedom of speech or religion. But substantive due process asks us to find unexpressed rights in a constitutional provision that guarantees only "process" before a person is deprived of life, liberty, or property. U. S. Const., Amdt. 14, § 1. When rights are un-